

Participation Agreement Singapore

Agreement #4998CM0379
PA# 4915008931

EFFECTIVE DATE OF THIS PARTICIPATION AGREEMENT ("PA"): last party signed

This PA between IBM Ireland Production Distribution Limited Singapore Branch ("Buyer") and George P. Johnson (Singapore) Pte Ltd ("Supplier") adopts and incorporates by reference all of the terms and conditions of the Base Agreement 4998CM0379 in effect as of the date hereof ("Base Agreement"). This PA automatically incorporates any future amendments to the Base Agreement referenced in this PA and will be made a part of this PA to the extent that the amendments do not conflict with the terms of this PA.

The parties to this PA agree that purchases and sales of the Deliverables, Products or Services, as defined in the Base Agreement, will be conducted in accordance with, and be subject to, the terms and conditions of this PA, the Base Agreement and any applicable Work Authorizations.

AMENDMENTS: The following terms and conditions amend provisions of the Base Agreement to bring the conduct of the parties' transactions into conformity with local law and practice.

1.0 Warranties

In addition to the representations and warranties in the Section titled "*Ongoing Warranties*" in the Base Agreement, Supplier represents and warrants:

1. it is familiar with all local laws and regulations pertaining to bribery, corruption and prohibited business practices and has not and will not partake in any actions in relation to the transactions contemplated herein in violation of such laws;
2. it and its Affiliates has not and will not offer, promise or make or agree to make payments or gifts (of money or anything of value) directly or indirectly to anyone for the purpose of influencing or inducing anyone to influence decisions in favor of Buyer;
3. unless expressly disclosed to Buyer in writing prior to the execution of this Agreement, it does not know nor has reason to believe that any of the owners, principals or senior management of Supplier, its Affiliates, or lower tier subcontractors (1) are or were persons acting in an official capacity for or on behalf of a government; or (2) have a familial relationship to persons acting in an official capacity for or on behalf of a government

2.0 Termination

Either party may terminate this PA, without any cancellation charge, if any of the following events occurs in respect of the other party or the terminating party has reasonable grounds to believe that one is likely to occur, namely that the other party: (i) has a meeting convened for the passing of a resolution for its winding up (other than a voluntary liquidation for the purposes of reconstruction); (ii) enters into a scheme or voluntary arrangement with its creditors; (iii) is the subject of a petition presented for the appointment of an administrator; (iv) has a receiver appointed over any of its property or assets; or (v) is the subject of a petition presented for its bankruptcy. Such termination will be effective upon notice in writing to the other party, liquidator, administrator or receiver.

2.1 Termination of a SOW or WA

The following clause shall be added into the end of the subsection titled "*Termination of this Base Agreement*":
Notwithstanding the foregoing, Supplier recognizes and agrees that Buyer may immediately terminate this Agreement for Cause by written notice to Supplier in the case that (1) Supplier breaches the Ongoing Warranties pertaining to bribery listed above, or (2) when Buyer reasonably believes such a breach has occurred or is likely to occur. For purposes of the subsection titled "*Termination of a SOW or WA*" in the Base Agreement, the term Cause shall be deemed to include these events.

3.0 Prior Communications and Order of Precedence

In the event of any conflict in the terms of the Base Agreement, the order of precedence will be: (i) the quantity, payment and delivery terms of the relevant WA; (ii) the relevant SOW; (iii) this PA; (iv) the Base Agreement; and (v) the remaining terms of the relevant WA.

4.0 Survival

In the event the Base Agreement is terminated, the terms and conditions of the Base Agreement incorporated by reference herein shall survive such termination and remain in effect for purposes of this PA only.

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5.0 Choice of Law and Forum

The parties agree that the laws of the Republic of Singapore shall govern in construing the provisions of this PA and the parties agree to submit any disputes arising from this PA to the non-exclusive jurisdiction of the courts of Singapore.

ACCEPTED AND AGREED TO:		ACCEPTED AND AGREED TO:
IBM Ireland Production Distribution Limited Singapore Branch		George P. Johnson (Singapore) Pte Ltd
By: _____		By: _____
Buyer Signature Date		Supplier Signature Date
_____		Steve Smith
Printed Name		Printed Name
_____		Managing Director
Title & Organization		Title & Organization
_____		_____
Buyer Address: 6 Tampines Industrial Avenue 5 Singapore 528760		Supplier Address: 111 Somerset Road #07-06 TripleOne Somerset Singapore 238164